

**23CV47066 - William CHAMBERLAIN,
Plaintiff,**

v.

CALAVERAS COUNTY BOARD OF SUPERVISORS, et al.

Defendants.

TENTATIVE RULING

On November 16 2023, Plaintiff William Chamberlain ("Plaintiff") filed the instant lawsuit against Calaveras County Board of Supervisors, Calaveras Building Department, and Calaveras Cannabis Control ("Defendants.")

At the Case Management Conferences ("CMC") held on March 20, 2024, Plaintiff was advised that service had not been completed. At a hearing held on Defendants' motion to quash service on June 4, 2024 the Court advised Plaintiff that the summons and complaint must be properly served and that "Proof of service is insufficient as a matter of law to satisfy service requirement." At the July 17, 2024 CMC, Plaintiff was again advised that service had not been completed.

At the January 8, 2025 CMC, the Court ordered Plaintiff to serve the summons and Complaint on all Defendants by the next CMC scheduled for July 9, 2025.

As of this hearing, Plaintiff has not filed proof of service of the summons and complaint.

California Rules of Court California Rules of Court, rule 3.110(b) provides:

The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint. When the complaint is amended to add a defendant, the added defendant must be served and proof of service must be filed within 30 days after the filing of the amended complaint.

Further, pursuant to Code Civil Procedure section 583.420(a)(1), provides for discretionary dismissal if "service is not made within two years after the action is commenced against the defendant."

The Complaint was filed on July 18, 2023. It is not more than two years since the action was commenced and service has not been effectuated on any Defendants.

Accordingly, the Court orders Plaintiff to appear at a hearing on Tuesday, September 23, 2025 at 1:30 p.m. in Dept. 3. to show cause as to why service has not been completed. The failure to appear at the hearing or to show cause will result in the matter being immediately dismissed, without prejudice.

23CV47073 - WILLIAM CHAMBERLAIN
Plaintiff,

v.

PACIFIC GAS AND ELECTRIC
Defendant.

TENTATIVE RULING

On November 12, 2023 Plaintiff William Chamberlain ("Plaintiff") filed the instant lawsuit against Pacific Gas and Electric ("Defendant.")

At the Case Management Conferences ("CMC") held on March 27, 2024, Plaintiff was advised that the "Summons, Complaint and Notice of Inclusion need to be served on the defendant's agent for service of process." On April 4, 2024, Plaintiff filed a proof of service by U.S. mail. However, at the July 17, 2024 Plaintiff was advised that service had not been completed.

At the January 8, 2025 CMC, the Court ordered as follows:

Plaintiff's proof of service filed April 4, 2024, is missing information. Plaintiff is directed to ensure service of the summons and complaint and file a valid proof of service by the next Case Management Conference is set for July 9, 2025, at 1:30 p.m. in Dept. 4.

As of this hearing, Plaintiff has not filed proof of service of the summons and complaint.

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